

1 ~~has been developed at any time prior to notifying the State~~
2 ~~Department of Education of the intent to participate in the Program~~
3 ~~and the IEP is in effect at the time the request for a scholarship~~
4 ~~is received by the State Department of Education~~ special needs who
5 meet at least one of the criteria of subparagraphs a, b, c, d, e, f,
6 or g of paragraph 1 of subsection B of this section. Scholarships
7 shall be awarded beginning with the 2010-2011 school year.

8 B. The parent or legal guardian of a ~~public school~~ student with
9 a ~~disability~~ special need may exercise their parental option and
10 request to have a Lindsey Nicole Henry Scholarship awarded for the
11 child to enroll in and attend a private school in accordance with
12 this section and the scholarship shall be awarded if:

- 13 1. The a. the student has ~~spent the prior school year in~~
14 ~~attendance at a public school in this state. For~~
15 ~~purposes of this section, "prior school year in~~
16 ~~attendance"~~ means that the student was enrolled in and
17 ~~reported by a school district for funding purposes~~
18 ~~during the preceding school year regardless of whether~~
19 ~~or not the student had an IEP at the time the student~~
20 ~~was counted for funding purposes. A~~ an individualized
21 education program (IEP) in accordance with the
22 Individuals with Disabilities Education Act (IDEA),
23 b. the student has had an individualized service plan
24 pursuant to Section 1-4-704 of Title 10A of the

1 Oklahoma Statutes any time prior to notifying the
2 State Department of Education of the intent to
3 participate in the program,

4 c. the student ~~who~~ is a child of a member of the United
5 States Armed Forces who transfers to a school in this
6 state from out of state or from a foreign country
7 pursuant to a permanent change of station orders of
8 the parent ~~shall be exempt from the requirements of~~
9 ~~this paragraph but shall be required to meet all other~~
10 ~~eligibility requirements to participate as provided~~
11 ~~for in this section. A student who has been provided~~
12 ~~services under an Individual Family Service Plan~~
13 ~~through the SoonerStart program and during transition~~
14 ~~was evaluated and determined to be eligible for school~~
15 ~~district services shall be exempt from the~~
16 ~~requirements of this paragraph but shall be required~~
17 ~~to meet all other eligibility requirements to~~
18 ~~participate as provided for in this section. A,~~

19 d. the student ~~who~~ was in out-of-home placement with the
20 Department of Human Services; ~~who,~~

21 e. the student was adopted while in the permanent custody
22 of the Department of Human Services; ~~who,~~

1 f. the student is enrolling or is enrolled in a school
2 that exclusively serves students experiencing
3 homelessness⁺, or ~~who~~

4 g. the student was in out-of-home placement with the
5 Office of Juvenile Affairs ~~shall be exempt from the~~
6 ~~requirements of this paragraph but shall be required~~
7 ~~to meet all other eligibility requirements to~~
8 ~~participate as provided for in this section; and~~

9 2. The parent or legal guardian has obtained acceptance for
10 admission of the student to a private school that is eligible for
11 the program as provided in subsection H of this section and has
12 notified the State Department of Education of the request for a
13 scholarship. Requests to participate in the program made after
14 December 1 shall be granted, but funding for scholarships requested
15 after December 1 shall not be available until the beginning of the
16 next school year. The request shall be through a communication
17 directly to the Department in a manner that creates a written or
18 electronic record of the request and the date of receipt of the
19 request. The Department shall notify the school district in which
20 the student is enrolled, if applicable, upon receipt of the request.
21 For purposes of continuity of educational choice, the scholarship
22 shall remain in force until the student enrolls in a public school,
23 graduates from high school, or reaches the age of twenty-two (22),
24 whichever occurs first. At any time, the parent or legal guardian

1 of the student may remove the student from the private school and
2 place the student in another private school that is eligible for the
3 program as provided in subsection H of this section or place the
4 student in a public school.

5 C. A student shall be eligible for a scholarship if the parent
6 or legal guardian of the student made a request for a scholarship
7 for the 2010-2011 school year and the student transferred to an
8 eligible private school but was subsequently denied a scholarship
9 because the student did not have an IEP in effect on October 1,
10 2009, but did meet all other eligibility requirements as set forth
11 in the Lindsey Nicole Henry Scholarships for Students with
12 Disabilities Program Act.

13 D. A student shall not be eligible for a Lindsey Nicole Henry
14 Scholarship if the student is not having regular and direct contact
15 with the private school teachers at the physical location of the
16 private school.

17 E. School districts shall notify the parent or legal guardian
18 of a public school student with a ~~disability~~ special need of all
19 options available pursuant to this section and inform the parent or
20 legal guardian of the availability of information about the program
21 from the State Department of Education through the toll-free
22 telephone number or website. The notification shall be provided
23 with or included in the copy of the "Parents Rights in Special
24

1 Education: Notice of Procedural Safeguards" document given to
2 parents at least annually or as otherwise required by law.

3 F. ~~1. Acceptance of a Lindsey Nicole Henry Scholarship shall~~
4 ~~have the same effect as a parental revocation of consent to service~~
5 ~~pursuant to 20 U.S.C., Sections 1414(a)(1)(D) and 1414(C) of the~~
6 ~~IDEA.~~

7 ~~2.~~ Upon acceptance of a Lindsey Nicole Henry Scholarship, the
8 parent or legal guardian shall assume full financial responsibility
9 for the education of the student including, but not limited to,
10 transportation to and from the private school.

11 G. If the parent or legal guardian requests a Lindsey Nicole
12 Henry Scholarship and the student is accepted by the private school
13 pending the availability of a space for the student, the parent or
14 legal guardian of the student shall notify the State Department of
15 Education before entering the private school and before December 1
16 in order to be eligible for the scholarship during the school year
17 when a space becomes available for the student in the private
18 school. If notification is made after December 1, payment of the
19 scholarship shall not begin until the next school year.

20 H. 1. To be eligible to participate in the Lindsey Nicole
21 Henry Scholarships for Students with Disabilities Program, a private
22 school shall notify the State Department of Education of its intent
23 to participate. The notice shall specify the grade levels and
24 services that the private school has available for students with

1 ~~disabilities~~ special needs who are participating in the scholarship
2 program. The State Department of Education shall approve a private
3 school as eligible to participate in the scholarship program upon
4 determination that the private school:

5 a. meets the accreditation requirements set by the State
6 Board of Education or another accrediting association
7 approved by the State Board of Education. The State
8 Department of Education shall list on its website all
9 accrediting associations approved by the Board,

10 b. demonstrates fiscal soundness by having been in
11 operation for one (1) school year or providing the
12 State Department of Education with a statement by a
13 certified public accountant confirming that the
14 private school desiring to participate is insured and
15 the owner or owners have sufficient capital or credit
16 to operate the school for the upcoming year by serving
17 the number of students anticipated with expected
18 revenues from tuition and other sources that may be
19 reasonably expected. In lieu of a statement, a surety
20 bond or letter of credit for the amount equal to the
21 scholarship funds for any quarter may be filed with
22 the Department,

23 c. complies with the antidiscrimination provisions of 42
24 U.S.C., Section 2000d,

- d. meets state and local health and safety laws and codes,
- e. will be academically accountable to the parent or legal guardian for meeting the educational needs of the student,
- f. employs or contracts with teachers who hold baccalaureate or higher degrees, or have at least three (3) years of teaching experience in public or private schools, or have special skills, knowledge, or expertise that qualifies them to provide instruction in subjects taught,
- g. complies with all state laws relating to general regulation of private schools, and
- h. adheres to the tenets of its published disciplinary procedures prior to the expulsion of a scholarship student.

2. Upon approval of a private school, the State Department of Education shall provide on its website all information and material submitted by the private school with its application.

I. 1. Lindsey Nicole Henry Scholarship Program participants shall comply with the following:

- a. the parent or legal guardian shall select the private school from the schools approved for eligibility

1 pursuant to subsection H of this section and apply for
2 the admission of the child,

3 b. the parent or legal guardian shall request the
4 scholarship no later than December 1 of the school
5 year during which the scholarship is requested,

6 c. any student participating in the scholarship program
7 shall attend throughout the school year, unless
8 excused by the school for illness or other good cause,
9 and shall comply fully with the code of conduct for
10 the school,

11 d. the parent or legal guardian shall fully comply with
12 the parental involvement requirements of the private
13 school, unless excused by the school for illness or
14 other good cause, and

15 e. upon issuance of a scholarship warrant, the parent or
16 legal guardian to whom the warrant is made shall
17 restrictively endorse the warrant to the private
18 school for deposit into the account of the private
19 school. The parent or legal guardian may not
20 designate any entity or individual associated with the
21 private school as the attorney in fact for the parent
22 or legal guardian to endorse a warrant. A parent or
23 legal guardian who fails to comply with this
24 subparagraph shall forfeit the scholarship.

1 2. A participant who fails to comply with this subsection
2 forfeits the scholarship.

3 J. Provisions governing payment of a Lindsey Nicole Henry
4 Scholarship shall be as follows:

5 1. The State Department of Education shall calculate the total
6 cost of all scholarships for all eligible students in the state.

7 The State Department of Education shall then reserve or retain from
8 the total amount appropriated to the State Board of Education for
9 State Aid purposes and any other revenue available for allocation
10 for State Aid purposes the total cost for all scholarship payments;

11 2. The maximum scholarship granted for an eligible student with
12 ~~disabilities~~ special needs shall be a calculated amount equivalent
13 to the total State Aid factors for the applicable school year
14 multiplied by the grade and disability weights for which the student
15 is eligible for the applicable school year. The disability weights
16 used in calculating the scholarship amount shall include all
17 disability weights which correspond to the disabilities included in
18 the multidisciplinary evaluation and eligibility group summary for
19 the student at the time the request for a scholarship is made by the
20 parent or legal guardian. The maximum scholarship amount shall be
21 calculated by the State Board of Education for each year the student
22 is participating in the scholarship program;

23 3. The amount of the scholarship shall be the amount calculated
24 in paragraph 2 of this subsection or the amount of tuition and fees

1 for the private school, whichever is less, minus up to two and one-
2 half percent (2 1/2%) of the scholarship amount which may be
3 retained by the State Department of Education as a fee for
4 administrative services rendered. If a private school does not
5 charge tuition, the amount of the scholarship shall be the amount
6 calculated in paragraph 2 of this subsection minus up to two and
7 one-half percent (2 1/2%) of the scholarship amount which may be
8 retained by the State Department of Education as a fee for
9 administrative services rendered. The amount of any assessment fee
10 required by the private school and the amount associated with
11 providing services and therapies to address the ~~disabilities~~ special
12 needs of the student may be paid from the total amount of the
13 scholarship. The amount of the scholarship shall be prorated to
14 reflect the number of days remaining in the current school year, if
15 the scholarship request is granted after the beginning of the school
16 year;

17 4. The State Department of Education shall notify the private
18 school of the amount of the scholarship within ten (10) days after
19 receiving the request for a scholarship, when the total State Aid
20 factors have been determined for the current fiscal year. The
21 initial payment shall be made after the Department verifies
22 admission acceptance and enrollment. Quarterly payments shall be
23 made upon verification of continued enrollment and attendance at the
24 private school. Payment shall be made by the Department with an

1 individual warrant made payable to the parent or legal guardian of
2 the student and mailed by the Department to the private school that
3 the parent or legal guardian chooses. The parent or legal guardian
4 shall restrictively endorse the warrant to the private school for
5 deposit into the account of the private school;

6 5. The State Department of Education shall not be responsible
7 for any additional costs associated with special education and
8 related services incurred by the private school for the student
9 including the cost of teachers, equipment, material, and special
10 costs associated with the special education class;

11 6. The State Department of Education shall establish a toll-
12 free telephone number or website that provides parents or legal
13 guardians and private schools with information about the program;

14 7. The State Department of Education shall require an annual,
15 notarized, sworn compliance statement by participating private
16 schools certifying compliance with state laws and shall retain all
17 records received from a participating private school. The State
18 Department of Education shall post on its website the annual
19 compliance statement for each participating private school; and

20 8. The State Department of Education shall cross-check the list
21 of participating scholarship students with the public school
22 enrollments prior to each scholarship payment to avoid duplication.

23 K. 1. The ~~State~~ Superintendent of Public Instruction shall
24 deny, suspend, or revoke the participation of a private school in

1 the scholarship program if it is determined that the private school
2 has failed to comply with the provisions of this section. However,
3 in instances in which the noncompliance is correctable within a
4 reasonable amount of time and in which the health, safety, or
5 welfare of the students is not threatened, the Superintendent may
6 issue a notice of noncompliance which shall provide the private
7 school with a time frame within which to provide evidence of
8 compliance prior to taking action to suspend or revoke participation
9 in the scholarship program.

10 2. If the Superintendent intends to deny, suspend, or revoke
11 the participation of a private school in the scholarship program,
12 the Department shall notify the private school of the proposed
13 action in writing by certified mail and regular mail to the private
14 school's address of record with the Department. The Department
15 shall also notify any parents or legal guardians of scholarship
16 students attending the private school. The notification shall
17 include the reasons for the proposed action and notice of the
18 timelines and procedures set forth in this subsection.

19 3. The private school that is adversely affected by the
20 proposed action shall have fifteen (15) days from receipt of the
21 notice of proposed action to file with the Department a request for
22 an administrative hearing proceeding pursuant to the Administrative
23 Procedures Act.
24

1 4. Upon receipt of a request for a hearing, the State Board of
2 Education shall commence a hearing within sixty (60) days after the
3 receipt of the formal written request and enter an order within
4 thirty (30) days after the hearing.

5 5. The Board may immediately suspend payment of scholarship
6 funds if it is determined that there is probable cause to believe
7 that there is an imminent threat to the health, safety, or welfare
8 of the students or fraudulent activity on the part of the private
9 school.

10 L. No liability shall arise on the part of the state, the State
11 Board of Education, the State Department of Education, or a school
12 district based on the award or use of any scholarship provided
13 through the Lindsey Nicole Henry Scholarships for Students with
14 Disabilities Program.

15 M. The inclusion of private schools within options available to
16 public school students in Oklahoma shall not expand the regulatory
17 authority of the state or any school district to impose any
18 additional regulation of private schools beyond those reasonably
19 necessary to enforce the requirements expressly set forth in this
20 section.

21 N. If the State Department of Education determines that a
22 school district prior to August 26, 2011, has failed to comply with
23 the provisions of the Lindsey Nicole Henry Scholarships for Students
24 with Disabilities Program Act and has failed to make full or partial

1 scholarship payments for eligible students, the Department shall
2 have authority to reduce the amount of State Aid allocated to the
3 school district or require the school district to make repayment to
4 the Department of State Aid allocations in an amount equal to the
5 amount of scholarship payments the school district failed to make.
6 The Department shall make payment to the parent or legal guardian in
7 the amount the school district failed to make in the manner as
8 provided for in subsection J of this section.

9 O. The State Department of Education shall annually prepare and
10 post on its website a report of Lindsey Nicole Henry Scholarships
11 for Students with Disabilities Program. The annual report shall
12 include, but not be limited to, the following information:

13 1. The total number and amount of scholarships awarded and
14 reported for each participating private school;

15 2. The total number of scholarships denied;

16 3. The total number and amount of scholarship payments
17 suspended for each participating private school; and

18 4. Data on participating students, disaggregated by years of
19 participation in the program, grade level, economically
20 disadvantaged status, racial and ethnic groups, and disability
21 category.

22 SECTION 2. This act shall become effective July 1, 2025.

23 SECTION 3. It being immediately necessary for the preservation
24 of the public peace, health, or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
4 March 5, 2025 - DO PASS
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